

Justification Review Document
for an Exception to Fair Opportunity – FAR 16.505(b)(2)

Program/Equipment: Product Technical Support Services for Product Manager (PdM)
Network Modernization and PdM Mission Network (MN)

Authority: 10 United States Code (U.S.C.) 3406(c)(2) as implemented in FAR
16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services
required at the level of quality required because the supplies or services ordered are
unique or highly specialized

Amount: [REDACTED]

Prepared by:

Typed Name: [REDACTED] DSN: _____

Title: __Contract Specialist_____ Date: _____

E-mail: [REDACTED] _____

Justification for an Exception
to Fair Opportunity Under FAR 16.505(b)(2)

1. Contracting Activity: U.S. Army Contracting Command (ACC) - Aberdeen Proving Ground (APG), Division B (CCAP-DDB), [REDACTED]
[REDACTED]

2. Description of Action: Product Manager (PdM) Network Modernization and PdM Mission Network (MN) Equipment is requesting to extend the Period of Performance (PoP) for task order W15P7T-19-F-0468, issued under Contract W15P7T-17-D-0100, from its current End of Contract (EOC) date of 03 March 2025 to 24 March 2025. action is for an extension of the PoP by three (3) weeks, a raising of the ceiling for CPFF Labor services to [REDACTED], and a raising of the Level of Effort by [REDACTED] hours is required to ensure that critical technical support services and deliverables are completed and provided on time, which is essential for maintaining the cybersecurity posture and operational readiness of the Army's Tactical Network.

3. Description of Supplies/Services: This extension will remain with MAG Aerospace, [REDACTED], for product technical support services for systems and equipment being produced, fielded, modified or supported by PdM Network Modernization (NETMOD) and PdM Mission Network of the Project Manager (PM) Tactical Network of the Program Executive Office for Command Control and Communications-Tactical (PEO C3T) under the Responsive Strategic Sourcing for Services (RS3) contract vehicle, a Multiple Award (MA) Indefinite Delivery-Indefinite Quantity (IDIQ) contract. The PoP is not to exceed the three (3) week extension. ACC-APG projects award of this task order no later than 03 March 2025, to avoid a potential break in service under the current product technical support services.

PdM NETMOD and PdM Mission Network are subordinate to PEO C3T. The contractor provides critical support for Warfighter Information Network-Tactical Increment 1 (WIN-T Inc 1) and Signal Modernization equipment. These systems require ongoing Authority to Operate (ATO) certifications, which must be maintained at least quarterly throughout the product lifecycle. The current task order was awarded under the RS3 MA IDIQ contract, with a Performance Work Statement (PWS) within the scope of RS3. The three (3) week extension estimated cost is [REDACTED]. This estimated total value is a combination of Labor, Travel, Material, and Shipping.

4. Authority Cited: 10 United States Code (U.S.C.) 3406(c)(2) as implemented in FAR 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized

5. Reason for Authority Cited: The Army's Tactical Network is a critical component of mission success, requiring continuous technical support to maintain secure, reliable, and effective communications. The PdMs for NETMOD and MN—both under PM PEO

C3T —rely on ongoing technical support services to meet the continuously evolving cybersecurity requirements of their systems and equipment.

MAG Aerospace has been pivotal in executing the current task order by offering profound system expertise and technical acumen. Their intimate knowledge of these specialized systems guarantees seamless technical support, whereas transitioning to a new contractor could lead to delays, inefficiencies, and potential mission risks due to the necessary learning curve. Considering the intricate and specialized nature of required services—including engineering support, cybersecurity updates, and technical documentation—extending MAG Aerospace’s contract emerges as the most cost-effective and efficient solution. Initiating a competitive procurement process at this juncture would likely result in disruptions, unwarranted expenses, and delays in service delivery, thereby jeopardizing critical support functions. This extension capitalizes on the ongoing work under the current contract, with MAG Aerospace playing a crucial role in system updates, security module enhancements, testing, documentation, and troubleshooting. Their deep familiarity with the technical landscape and active projects uniquely positions them to continue this work without interruption.

All RS3 contract holders were afforded a fair opportunity to compete for the original task order. This extension is solely intended to maintain continuity and avert service interruptions that could compromise the Army’s operational capabilities. No other contractor possesses the equivalent operational insight into the task order as MAG Aerospace, rendering a sole-source extension the most logical and efficient course of action. PdM NETMOD and PdM MN necessitate ongoing technical support to address evolving cybersecurity requirements. This support is vital to safeguard systems and equipment across various technical service areas, including Engineering Services, Field Engineering Support, Integrated Logistics Support, Risk Management Framework (RMF), Post-Deployment Software Support (PDSS), and Training Services. Extending the contract facilitates continued progress in Size-Weight-And-Power (SWAP) reduction initiatives and ensures essential technology insertions to manage equipment obsolescence.

The adversarial threat landscape is in constant flux, demanding continuous enhancements to the Army’s cybersecurity posture. Tactical network products must evolve to counter emerging threats, necessitating uninterrupted system updates and technical support. The proposed contract extension will enable MAG Aerospace to sustain and bolster security measures, effectively mitigating vulnerabilities that adversaries might exploit. Unforeseen challenges in system development have postponed the completion of key deliverables. Without this extension, certain deliverables would remain in draft form, failing to meet the certification standards essential for secure communications. Since draft versions cannot support ATO

certification, an extension is imperative to finalize these critical documents. Delays in finalizing deliverables could introduce significant vulnerabilities within the Army's Tactical Network, exposing systems to cyber threats that could precipitate mission failures, operational disruptions, or even loss of life. The extension is crucial to ensure the development, testing, and certification of products that protect Army operations.

MAG Aerospace is actively engaged in the development of RDTv2, a vital component of the forthcoming PDSS release. Continued access to Government Furnished Property (GFP) is essential for effective troubleshooting and system updates. Their work on the LCN-tv2 hardware (Dell x8000s and laptops) also necessitates ongoing GFP access for troubleshooting, hard drive replacements, and refining the Bill of Materials (BOM), which is integral to the Mission Network. This access is critical to maintaining system operational integrity and ensuring the successful documentation of configuration guides, thereby guaranteeing system readiness. Ongoing utilization of GFP is required to refine the technical manual for the Omega LCN-Tv2 system, supporting ATEC observation and formal material release—steps crucial for achieving full operational and certification requirements. MAG Aerospace is tasked with delivering updated security modules and field updates (REDCOM 4.0.5 vs. 4.0.3) to address functional capability issues, which are necessary to uphold the integrity and security of the Mission Network systems. The requested extension will ensure these updates are implemented and delivered as scheduled.

MAG Aerospace is finalizing PDSS images, security modules, and documentation for six systems. Due to development delays, additional time is required to complete government witness testing and finalize these deliverables. An extra three (3) weeks of support is needed to complete installation documentation for Soldier Operators, providing detailed maintenance and installation guides for two (2) systems. This documentation is essential to ensure the systems effectively integrate new security protocols. Without it, Soldier Operators would be unable to install and maintain systems as required, jeopardizing the security of the Army's Tactical Network. The CCEv4 system image necessitates further government witness testing due to issues encountered during the initial testing phase with destructive image integration. Under the current timeline, only draft deliverables can be submitted, which would delay the final product. The requested extension will provide the necessary time to resolve these issues and finalize the deliverable for Soldier Operators.

Given the critical nature of the support required for both PdM Mission Network and PdM Network Modernization, and the potential impact on the Army's Tactical Network if these efforts remain incomplete, it is recommended that the EOC be extended by 21 days, from March 3, 2025, to March 24, 2025. This extension will ensure the completion of all required technical services, mitigate cybersecurity vulnerabilities, and support the

Army's mission by maintaining the secure and efficient operation of the Tactical Network. Issuing this extension on a sole-source basis is the most effective and logical strategy to sustain mission-critical operations without disruption. Failure to extend could lead to severe operational and security consequences, which must be avoided.

6. Efforts to Obtain Competition: The Government issued a Request For Information (RFI) from 01 Dec 2023, through 05 Jan 2024. The RFI was distributed to vendors under the RS3 MA IDIQ contract vehicle, resulting in responses from seven (7) vendors, as detailed below in Section 8 of this document. Additionally, since this requirement is being procured under MATOC and was previously synopsized before award in accordance with FAR part 5 - Publicizing Contract Actions, it will not require additional synopsis under FAR 5.202(a)(6) and (11).

a. Effective competition. To promote full and open competition, the current effort was previously competed among eligible contract holders, ensuring all qualified vendors had an opportunity to submit proposals. Through this competitive process, the most capable contractor was selected to provide the specialized technical support services required for the Army's Tactical Network. Given the highly specialized nature of the work and the ongoing development efforts, transitioning to a new contractor at this stage would introduce unacceptable delays, increased costs, and significant risks to operational security. While the Army remains committed to fostering competition, in this instance, a sole-source extension is necessary to ensure the timely completion of critical deliverables, maintain cybersecurity integrity, and prevent disruptions that could compromise mission success. Future requirements will continue to be assessed for competitive opportunities wherever feasible.

b. Subcontracting competition. The Government will ensure that the prime contractor maximizes subcontracting opportunities by promoting competition among qualified subcontractors, encouraging fair and open participation, and fostering diverse industry engagement to the greatest extent possible.

7. Actions to Increase Competition: To enhance competition for this requirement, a follow-on effort was fully competed under the RS3 contract vehicle, ensuring fair and open competition among eligible offerors. The competitive acquisition process allowed for the evaluation of multiple proposals to obtain the best value for the government. This follow-on contract is anticipated to be awarded in approximately March 2025, ensuring a seamless transition of services while maintaining operational effectiveness. The competitive nature of the procurement process demonstrates the government's commitment to fostering competition and securing cost-effective, high-quality support for the Army's Tactical Network.

8. Market Research: Government technical representatives conducted comprehensive market research, including engagements with industry experts and Government

technical personnel, to assess available capabilities for meeting the logistics support needs of the Product Support Services for PdM NETMOD and PdM MN programs.

Company/Contractor's list	Intend to Bid	UEID	CAGE/NCAGE	Size Standard	Date Submitted	Capable of performing
Nexagen Networks, Inc.	Yes	UFZCFEVTJG77	3EGC9	Small	4-Jan-24	NO
Envision	Yes	VNMLXFMQD976	4JB87	Small	4-Jan-24	NO
Leidos	Yes	QLNMVC12KWY3	5UTE2	Large	4-Jan-24	YES
MAG DS CORP	Yes	YJCQHLKKG3W5	1WYP9	NAICS Dependent	5-Jan-24	YES
Hill Mission Technologies Corp	Yes	G5H7HWC4L2R5	3BM51	Large	5-Jan-24	NO
ManTech Advanced Systems International, Inc.	Yes	JY2BDT2K58Z6	5N741	Large	5-Jan-24	YES
P E Systems, Inc.	Yes	PUZ4TAWZLMS1	5H249	NAICS Dependent	5-Jan-24	NO

A Request for Information (RFI)/Sources Sought Announcement (SSA) was issued to RS3 contract holders via SAM.gov from December 1, 2023, to January 5, 2024, to assess industry interest and capability in supporting the anticipated requirements for PdM Network Modernization (NETMOD) and PdM Mission Network (MN). A total of seven (7) responses were received, two (2) small businesses and five (5) large businesses.

Upon a review and careful consideration of the responses received, PdMs NetMod and MN have determined that the use of the RS3 effort vehicle represents the best acquisition strategy to fulfill its anticipated requirement. Research Survey Assessment indicates that the following vendors are either capable or capable of performing the effort outlined in the RFI: Leidos, MAG DS CORP, and ManTech. The remaining vendors raised a lot of questions if they would be capable of performing the effort outlined in the RFI. In this case PdM NetMod and PdM MN came to conclusion the best method to award this effort is through full and open competition as there is not adequate small businesses to make this a small business set-aside. The RS3 effort vehicle was determined to be the best source for meeting the required effort in the timeline needed to ensure adequate support for PdM NetMod and PdM MN.

9. Other Facts:

a. Procurement history.

Current effort:

Contract: W15P7T17D0100, Task order: W15P7T19F0468

Contractor: MAG Aerospace

The period of performance is set to end on 03 March 2025 currently. This effort was competitively awarded for a base year and four (4) option years for a total of five (5) years.

b. Market research indicated that the majority of services procured under RS3 contracts are noncommercial, as defined by FAR Part 2. In accordance with FAR Part 10, a thorough evaluation was conducted to assess commercial availability, and the findings confirmed that this requirement cannot be met by a commercial service. Additionally, a reevaluation under FAR 10.002(b) determined that the Government's needs cannot be modified in a way that would allow for a commercial solution. As a result, FAR Part 12 procedures will not be used for this procurement.

10. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: _____

Typed Name: _____ Title: Production Chief / COR W15P7T-19-F-0468

11. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: _____

Date: 2025 02 21 13:36:33 -0500

Date: _____

Typed Name: _____ Title: Contracts Management Branch Chief

12. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

Signature: _____

Date: _____

Typed Name: _____ Title: Contracting Officer

13. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: _____

Date: _____

Typed Name: _____ Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of Product Technical Support Services for [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 United States Code (U.S.C.) 3406(c)(2) as implemented in FAR 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized; subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Signature: [REDACTED] Date: 2025.02.21 16:07:57 -0500

Typed Name: [REDACTED] Title: _____ Contracting Officer _____